

**Before the
Federal Maritime Commission**

Docket No. 24-08

**TZ SSE Buyer, LLC
v.
Orient Overseas Container Line Limited and OOCL (Europe) Limited**

ANSWER TO VERIFIED SECOND AMENDED COMPLAINT

INTRODUCTORY STATEMENT

Pursuant to the Order of the Presiding Officer dated October 11, 2024, Respondents Orient Overseas Container Line Ltd. and OOCL (Europe) Limited (“Respondents”)¹ submit the following Answer to the Verified Second Amended Complaint (hereinafter “Complaint”).

Respondents again note the Order of the then-Presiding Officer dated June 3, 2024 denying Respondents’ Motion to Dismiss on the basis that the “assignment of claims [by Laufer Group International] alleged in and attached to the amended complaint cures the defect alleged by Respondents in the Motion.” We point out, however, that the assignment of claims that “cures the defect” is only with respect to claims that could have been alleged by the purported Assignor (Laufer Group International)(“Laufer”). Respondents therefore respond only to the surviving claims; those that do not involve cargo carried by Laufer have been dismissed from the proceeding and are in any event specifically denied in full.

With respect to the surviving claims purported by Complainant to have been assigned by

¹ Complainant has attempted to improperly shoehorn OOCL (USA) Inc. into the term “OOCL.” Verified Second Amended Complaint para. 11. But OOCL (USA) Inc. is neither a respondent (and could not be) nor an ocean common carrier. Accordingly, to avoid the confusion created by Complainant’s misuse of the term, we will not refer to OOCL at all, except when referring to a specific OOCL entity, but only to Respondents.

Laufer to former (and now defunct) Complainants and hence to current Complainant, Respondents note as follows. To the best of Respondents' knowledge and information, neither of the Respondents had any service contracts with either of the so-called (and now defunct) "Injured Parties" (Impact Products, LLC or Safety Zone, LLC)² during the Relevant Period (2021-2022). Nor did Respondents have any service contract with the former Complainants alleged corporate parent Supply Source Global (also now defunct). Furthermore, there has never been any service contract between Respondents and Complainant, TZ SSE Buyer, LLC, which allegedly acquired the assets and (we understand) some of the liabilities of the three aforementioned entities by way of a purchase in bankruptcy under Chapter 11 effective on July 10, 2024. And while Respondents did have service contracts with Laufer, it appears that none of the shipments covered by the Complaint were carried under a service contract between Laufer and Respondents. Rather, those shipments were controlled by the shipper at origin, who was the Shipper Party to the relevant service contracts with Respondents. Laufer was not a Shipper Party to those service contracts; nor did it appear as shipper on any Master Bills of Lading issued by Respondents, but rather acted only as consignee or notify party on these shipments. Finally, to the best of Respondents' knowledge and information, the shipments moved on container yard ("CY") terms, under which a carrier's responsibility for delivery ends when the cargo is made available to the consignee at the marine terminal.

Imposition of delay charges by Laufer on its customers, i.e., Impact Products, LLC and Safety Zone, LLC, for delays caused by Laufer cannot possibly be an unreasonable practice by Respondents. Rather, to the extent that any charge was unreasonable, it was an unreasonable practice by Laufer, a non-vessel-operating common carrier (NVOCC) regulated by the FMC and

² Respondents object to Complainant's misleading use of the term "Injured Parties" to refer to Impact Products, LLC or Safety Zone, LLC, because, as explained above, any injury they may have suffered, which Respondents dispute, was at the hands of Laufer, not Respondents. Accordingly, Respondents will refer to Impact Products, LLC and Safety Zone, LLC by their correct names or as "former Complainants."

subject to the Interpretive Rule and the requirements of the Ocean Shipping Reform Act of 2022. Finally, Laufer never disputed any charges with Respondents whatsoever regarding these shipments.

Therefore, and subject to the foregoing, Respondents Answer the Complaint setting forth Complainant's allegations by paragraph number followed by Respondents' respective answer as follows:

1. Complainant TZ SSE Buyer, LLC ("Complainant"), by its undersigned counsel, brings this Verified Second Amended Complaint against Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited ("OOCL" or "Respondent"), pursuant to 46 U.S.C. Section 41301, to seek reparations for injuries to Impact Products, LLC and Safety Zone, LLC (the "Injured Parties") caused by Respondents' violations of the Shipping Act of 1984, as amended, 46 U.S.C. Sections 40101 *et seq.* (the "Shipping Act").

ANSWER: Respondents admit that Complainant, as purchaser in bankruptcy of former Complainants, as purported assignees from Laufer, has filed an amended complaint against Respondents, the contents of which are the best evidence of what it says.

Respondents deny the remaining allegations of Paragraph 1.

2. The Injured Parties originally filed the Verified Complaint against Respondents on February 14, 2024 and amended their Verified Complaint on May 17, 2024. However, on May 21, 2024, the Injured Parties filed for Chapter 11 bankruptcy in the United States Bankruptcy Court for the District of Delaware, Case No. 24-bk-11055 (Bankr. Del.) (the "Bankruptcy Proceeding"). As part of the Bankruptcy Proceedings, the Injured Parties sold all of their assets, including the claims asserted against Respondents in this case, to Complainant. The Bankruptcy Court approved the sale on July 10, 2024. As a result, the Complainant now brings these claims on

behalf of the Injured Parties.

ANSWER: Ignoring the misleading reference to “Injured Parties” (see note 2 above), Respondents admit that Impact Products, LLC and Safety Zone, LLC filed the original Verified Complaint against Respondents on February 14, 2024, and later amended the Verified Complaint on May 17, 2024. Respondents otherwise lack sufficient information to admit or deny the allegations of Paragraph 2.

3. Since the beginning of the COVID-19 pandemic, global ocean carriers, including Respondents, have, as alleged herein, and upon information and belief, unjustly and unreasonably exploited customers, such as the Injured Parties, by vastly increasing their profits at the expense of shippers and the U.S. public generally, which bears increased freight cost in the form of inflation.

ANSWER: Respondents deny the allegations of Paragraph 3 as to Respondents and lack information sufficient to respond regarding other ocean carriers.

4. As explained further below, beginning in 2021 through 2022 (the “Relevant Period”), OOCL assessed demurrage, detention, per diem, and yard storage charges (the “Charges”) to the Injured Parties for periods of time in which the Injured Parties’ ability to pick up containers at the ports, or return empty containers promptly, was significantly constrained due to circumstances outside of the Injured Parties’ control, such as congestion at the ports and shortage of equipment.

ANSWER: Respondents deny the allegations of Paragraph 4 and specifically deny the allegation that Respondents charged “yard storage charges” on the shipments covered by the surviving claims of the Complaint (the “Subject Shipments”).

5. Respondents’ conduct, as alleged herein, with respect to the receipt, handling, storage, and/or delivery of the Injured Parties’ property and, upon information and belief, of other shippers, occurred on a normal and customary basis.

ANSWER: Respondents deny the allegations of Paragraph 5.

6. The Injured Parties Impact Products, LLC and Safety Zone, LLC are corporations with offices in Ohio, Tennessee, and Connecticut, among other locations. Impact Products LLC is located at 2840 Centennial Rd., Toledo, OH 43617 and they have an email address of Thomas.russo@supplysourceglobal.com. Safety Zone LLC has an address of 385 Long Hill Rd., Guilford, CT 06437 and an email address of Thomas.russo@supplysourceglobal.com. Their parent corporation is Supply Source Enterprises (“Supply Source”). The Injured Parties are “shippers” pursuant to 46 U.S.C. 40102(23). Impact Products was the leading manufacturer of supplies and accessories for the cleaning industry, and Safety Zone manufactured safety equipment and products. They were in business for over fifty years. Impact Products LLC was formed in 1963 and Safety Zone LLC in 1973. The Injured Parties had service centers in Connecticut, Ohio, and Shanghai, China and distribution centers in Connecticut, Indiana, California, Texas, and Florida.

ANSWER: Respondents deny the allegation of Paragraph 6 that Impact Products, LLC or Safety Zone, LLC were “shippers.” Respondents deny that Impact Products, LLC or Safety Zone, LLC appeared on any ocean bills of lading issued by Respondents under any designation (“shipper”, “consignee”, “notify party” or any other designation); nor did Respondents contract with Impact Products, LLC or Safety Zone, LLC in any other way to carry any of the Subject Shipments. Respondents lack information sufficient to admit or deny the remaining allegations of Paragraph 6; to the extent response is required, denied.

7. Complainant is a Delaware limited liability company located at 2480 Centennial Drive, Toledo, Ohio 43617 and has an email address of tlondo@tranzonic.com.

ANSWER: Respondents lack information sufficient to admit or deny the allegations of

Paragraph 7; to the extent response is required, denied.

8. Upon information and belief, Respondent Orient Overseas Container Line Limited is a company existing under the laws of Hong Kong with its principal place of business located at 25 Harbour Road, 31st Floor Harbour Centre, Wanchai, Hong Kong, acting in the United States by and through its agent, OOCL (USA) Inc. (“OOCL (USA)”), a company existing under the laws of the State of New York with its principal place of business located at 10913 South River Front Parkway, Suite 200, South Jordan, UT 84095. Respondent Orient Overseas Container Line Limited is a global ocean carrier that offers container transportation and serves multiple ports in the United States.

ANSWER: Respondents admit the allegations of Paragraph 8 except that they lack information sufficient to admit or deny the allegation that Respondent Orient Overseas Container Line Limited is a “global ocean carrier,” as that term is nowhere defined.

9. Upon information and belief, Respondent OOCL (Europe) Limited is a company existing under the laws of the United Kingdom with its principal place of business located at OOCL House, Levington Park, Bridge Road, Levington Suffolk, IP10 ONE, United Kingdom, acting in the United States by and through its agent, OOCL (USA). Respondent OOCL (Europe) Limited is a global ocean carrier that offers container transportation and serves multiple ports in the United States.

ANSWER: Respondents admit the allegations of Paragraph 9 except that they lack information sufficient to admit or deny the allegation that Respondent Orient Overseas Container Line Limited is a “global ocean carrier,” as that term is nowhere defined.

10. Upon information and belief, Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited are both wholly owned subsidiaries of Orient Overseas (International) Limited (“OOIL”), which itself is majority owned and controlled by COSCO SHIPPING Lines

Co., Ltd. (“COSCO”).

ANSWER: Respondents admit the allegations of Paragraph 10.

11. Upon information and belief, Respondent OOCL and its agent OOCL (USA) acted jointly in the conduct alleged herein with respect to Complainant and, upon information and belief, other shippers, and therefore are referred to herein collectively as “OOCL” or “Respondent.”

ANSWER: Respondents deny the allegations of Paragraph 10

12. The Federal Maritime Commission (“FMC”) has jurisdiction over this Amended Verified Complaint pursuant to 26 U.S.C. §§ 41301 through 41309.

ANSWER: Respondents deny the allegation of Paragraph 12 that the FMC has jurisdiction under “26 U.S.C. §§ 41301 through 41309.”

13. The FMC has personal jurisdiction over Respondents as an ocean common carriers, as that term is defined by 46 U.S.C. Section 40102(18), that has entered into a “service contract”, as that term is defined by 46 U.S.C. Section 40102(21), with Laufer Group International (“Laufer”).

ANSWER: Respondents admit the allegation of Paragraph 13 that, as ocean common carriers, they are generally subject to the personal jurisdiction of the FMC. Respondents deny the remaining allegations of Paragraph 13, including the allegation that the Subject Shipments moved under a service contract between either of the Respondents and Laufer Group International.

14. Respondents’ actions alleged herein constitute failures by Respondents to establish, observe, and enforce just and reasonable practices relating to receiving, handling, storing, and delivering the property of the Injured Parties, in violation of 46 U.S.C. Section 41102(c) and the FMC’s Interpretive Rule on Demurrage and Detention under the Shipping Act, 85 Fed. Reg. 29,638 (May 18, 2020 (partially codified at 46 C.F.R. Section 545.5) (the “Interpretive Rule”), and in

particular the Incentive Principle articulated in the Interpretive Rule.

ANSWER: Paragraph 14 constitutes a conclusion of law to which no response is required.

To the extent that a response may be required, Respondents deny the allegations of Paragraph 14.

15. Respondents' assessment of the Charges or a substantial majority thereof, and the alleged acts and omissions of Respondents that led to the assessment of such Charges, also constitute violations of 46 U.S. Section 41104, including 46 U.S.C. Section 41104(a)(10)'s prohibition on unreasonable refusals to deal or negotiate.

ANSWER: Paragraph 15 constitutes a conclusion of law to which no response is required.

To the extent that a response may be required, Respondents deny the allegations of Paragraph 15.

16. For the period of 2021 through 2022, the Injured Parties used Laufer, a non-vessel operating common carrier ("NVOCC"), to assist in delivering containers with the Injured Parties' goods (the "Relevant Containers") from outside the United States to the United States. Upon information and belief, Laufer entered into a service contract or service contracts with Respondents for the shipment of the Relevant Containers on Respondents' vessels. Laufer, as an NVOCC, booked the shipment of the Relevant Containers under these service contracts.

ANSWER: Respondents deny the allegations of Paragraph 16 except that Respondents admit that Laufer is an NVOCC. Respondents deny that any of the Subject Shipments moved under a service contract between Laufer and Respondents.

17. Throughout the Relevant Period, the Injured Parties, through Laufer, shipped 393 unique containers using Respondents. Of those containers, Respondents assessed Laufer with demurrage on 59 containers, detention charges on 27 containers, per diem charges on 129 containers, and yard storage charges on 32 containers. The total demurrage, detention, per diem, and yard storage

charges total \$439,795.

ANSWER: Respondents deny the allegation in Paragraph 17 that the containers were carried by Respondents pursuant to a service contract with Laufer. Respondents deny the allegation that Respondents assessed yard storage – which is a charge that Respondents do not impose. Respondents deny that Respondents charged Laufer for detention, demurrage, per diem, or yard storage on any shipments that were delivered to an inland rail terminal on a container yard (CY) bill of lading. Because the Complaint does not specify the containers at issue, Respondents lack information sufficient to admit or deny the remaining allegations Paragraph 17; to the extent response is required, denied.

18. Laufer passed the Charges through to the Injured Parties with no markups. While Laufer invoiced the Injured Parties for the Charges, it simply acted as a conduit for the Charges that were assessed by Respondents. The Injured parties subsequently paid Laufer a total of \$439,795 for the Charges assessed by Respondents during the Relevant Period. Laufer then used the proceeds it received from the Injured Parties to pay Respondents.

ANSWER: Respondents deny the last sentence of Paragraph 18 and otherwise lack information sufficient to admit or deny the allegations of Paragraph 18; to the extent response is required, denied.

19. On April 4, 2024, Laufer assigned the claims alleged herein against Respondents to the Injured Parties. A true and correct copy of the Assignment of Claims Agreement between the Injured Parties and Laufer is attached herein as Exhibit A.

ANSWER: Respondents admit the allegation of Paragraph 19 that Laufer signed a document purporting to assign certain claims it purportedly may have held against Respondents but deny that Laufer held any such claims or that such purported assignment was effective as a transfer of alleged Shipping Act claims.

20. As Commissioner Rebecca F. Dye emphasized in her Final Report from the FMC’s Fact Finding Investigation 29, “the Interpretive Rule on Detention and Demurrage promulgated by the Commission pursuant to Fact Finding 28 provides the shipping public with an enforceable principle that the Commission employs to assess the reasonableness of demurrage and detention practices and regulations under the Shipping Act of 1984, as amended.”

ANSWER: Respondents assert that the document itself is the best evidence of its contents but deny that the existence of this document is relevant to this matter or is proof/evidence of anything contained therein.

21. As set forth in the FMC’s Interpretive Rule, “the purpose of demurrage and detention are to incentivize cargo movement,” and therefore the FMC “will consider in the reasonableness analysis under section 41102(c) the extent to which demurrage and detention are serving their intended purposes as financial incentives to promote freight fluidity.”

ANSWER: Respondents assert that the Interpretive Rule, as effectively revised by the United States Court of Appeals for the District of Columbia Circuit, itself is the best evidence of its contents.

22. Respondents’ assessment of the Charges, or a substantial majority thereof, and Respondents’ acts and omissions that led to the assessment of the Charges, were incapable of incentivizing cargo movement and therefore unreasonable.

ANSWER: Respondents deny the allegations of Paragraph 22.

23. To maximize container use and port storage space, carriers charge a daily fee to shippers who fail to pick up containers promptly or after the number of free days has expired. Similarly, an importer faces detention charges if it fails to unload a container and return the empty container to the port within the free period.

ANSWER: Respondents deny the allegations of Paragraph 23 to the extent the allegations

assert that only carriers, and not terminals, charge such fees and further to the extent it alleges that there are no other relevant considerations.

24. Respondents refused to act reasonably by increasing the number of free days available to the Injured Parties to retrieve the Relevant Containers, despite the fact that the delays were caused by circumstances outside the Injured Parties' control and were attributable to Respondents' acts or omission.

ANSWER: Respondents deny the allegations of Paragraph 24

25. In 2021 and 2022, the volume of shipments coming into certain ports had surged, compared to 2020. Even though the volume increased, Respondents refused to divert shipments to less congested ports and also failed to extend the number of free days for the Injured Parties to retrieve the Relevant Containers and to drop off empty containers before it assessed the Charges.

ANSWER: Respondents deny the allegations set forth in the second sentence of Paragraph 25 and lack information sufficient to admit or deny the allegation of the first sentence of Paragraph 25; to the extent response is required, denied.

26. The Charges assessed by Respondents and paid by the Injured Parties were assessed during periods of time in which such Charges were not just or reasonable because of circumstances outside the control of the Injured Parties and its agents and service providers, such as congestion at ports and shortage of equipment.

ANSWER: Respondents deny the allegations of Paragraph 26.

27. Respondents failed to provide adequate practices and facilities to handle and store Respondents' empty containers and also failed to provide adequate facilities for its customers, including the Injured Parties, to return empty containers.

ANSWER: Respondents deny the allegations of Paragraph 27.

28. Despite that knowledge, Respondents' continued to accept Complainants' goods for ocean

common carriage and for receipt, handling, storage, and/or delivery through the ports.

ANSWER: Respondents deny the allegations of Paragraph 28.

29. Respondents also failed to provide the Injured Parties with reasonable free time to retrieve the Relevant Containers, which Respondents transported into the ports while failing to clear their container backlog.

ANSWER: Respondents deny the allegations of Paragraph 29.

30. The Charges did not serve, and could not have served, as a financial incentive to promote freight fluidity, but instead operated only as a punitive penalty on the Injured Parties for circumstances over which they and their agents and service providers had little to no control.

ANSWER: Respondents deny the allegations of Paragraph 30.

31. Respondents also failed to provide sufficient detail on its invoices to allow Injured Parties to understand the reasons for the Charges and to be able to contest the Charges.

ANSWER: Respondents deny the allegations of Paragraph 31.

32. Unless addressed, Respondents' unlawful practices risk becoming the industry standard, allowing global container lines to impose improper detention and demurrage charges on shippers for delays and conditions beyond the shippers' control.

ANSWER: Respondents deny the allegations of Paragraph 32.

33. Complainant repeats and realleges the allegations above as if fully set forth herein.

ANSWER: Respondents repeat and reassert the answers above as if fully set forth herein.

34. Respondents' assessment of the Charges, and the alleged acts or omissions of Respondents that led to the assessment of such Charges, constitutes failures by Respondent to establish, observe, and enforce just and reasonable practices relating to receiving, handling, storing, and delivering the Injure Parties' property in violation of 46 U.S.C. Section 41102(c), 46 C.F.R. Section 545.5, and the FMC's Interpretive Rule.

ANSWER: Respondents deny the allegations of Paragraph 34.

35. Complainant repeats and realleges each allegation above as if fully set forth herein.

ANSWER: Respondents repeat and reassert the answers above as if fully set forth herein.

36. Respondents' assessment of the Charges, and the alleged acts or omissions of Respondents that led to the assessment of such Charges, constitutes unreasonable refusal to deal or negotiate with the Injured Parties, in violation of 46 U.S.C. Section 41104(a)(10).

ANSWER: Respondents deny the allegations of Paragraph 36.

37. The foregoing alleged illegal acts of OOCL have directly and proximately injured Complainant, through the Injured Parties, by forcing the Injured Parties to pay the Charges.

ANSWER: Respondents deny the allegations of Paragraph 37. Respondents specifically deny that the former Complainants paid any Charges to Respondents or that Respondents forced them to pay any of the Charges (which they did not pay).

38. Complainant, through the Injured Parties, have been, and continue to be, actually and materially injured by each of Respondents' continuous conduct in violation of the Shipping Act alleged herein.

ANSWER: Respondents deny the allegations of Paragraph 38.

39. Respondents' violations alleged herein are causing direct, proximate, and ongoing financial damages to Complainant, through the Injured Parties, in an amount in excess of \$400,000, currently accruing, and to be further demonstrated in this proceeding.

ANSWER: Respondents deny the allegations of Paragraph 39.

REQUEST FOR ORAL HEARING

Respondents request an oral hearing in Washington, D.C.

AFFIRMATIVE DEFENSES

1. The FMC lacks authority to adjudicate this matter, as it would violate the Seventh

Amendment.

2. The FMC lacks authority to adjudicate this matter, as it would violate the Judiciary Act of 1789.

3. Complainant lacks standing to seek reparations.

4. The FMC lacks authority to adjudicate this matter to the extent that Complainant's claims sound in contract.

5. Complainant has failed to plead essential elements of a claim under 46 U.S.C. Section 41102(c).

6. Complainant has failed to plead essential elements of a claim under 46 U.S.C. Section 41104(a)(10).

7. Complainant (or its purported assignors Laufer, then the former Complainants) waived all of Complainant's claims due to its failure (or the failure of its purported assignors -- Laufer, then the former Complainants) to use the procedures required by the FMC and maintained by Respondents for addressing disputes about detention, demurrage, and per diem charges.

8. Because Respondents maintained procedures for disputing detention, demurrage, and per diem charges and Complainant willfully declined to use them, Respondents' actions are *per se* reasonable.

9. Any harm experienced by Laufer and purported to be assigned to Complainant was as a result of Laufer's own failures or inaction.

10. Complainant has failed to state a claim for which relief can be granted, including for reasons of vagueness.

11. Complainant has (and the former Complainants had) no more rights against Respondents than Laufer had against Respondents, and Laufer had no claims against Respondents.

12. Complainant has not suffered any actual injury or damage as a result of Respondents' alleged violations of the Shipping Act, which, if any, are denied.

13. Complainant acted as a volunteer in making payments to non-party Laufer without determining the validity of Laufer's claims before making payment.
14. Complainant lacks standing to assert any claims other than those assigned to it by Laufer.
15. Any delay in the delivery of cargo or return of empty equipment that resulted in charges to the Impact Products, LLC or Safety Zone, LLC was caused by Laufer or its agents and was the responsibility of Laufer or its agents; invoicing Impact Products, LLC or Safety Zone, LLC for charges incurred due to Laufer's delay was an unreasonable practice by Laufer, a non-vessel-operating common carrier (NVOCC) regulated by the FMC.
16. To the extent that the Claims involve charges from entities other than Respondents, such as railroads, terminal operators, truckers, and storage facilities, Respondents cannot be held responsible.
17. The Presiding Officer lacks the authority to hear this proceeding pursuant to the Appointments Clause, U.S. Constitution, Art. II, Section 2.
18. Complainant lacks standing to assert claims on behalf of defunct entities Impact Products, LLC and Safety Zone, LLC.
19. Complainant lacks standing to assert claims on behalf of defunct entity Supply Source Global.
20. Complainant lacks standing to assert the claims of Laufer Group International pursuant to an assignment of claims to Impact Products, LLC and Safety Zone, LLC, as that assignment of claims is invalid.
21. The Claims are barred by the Statute of Limitations.
22. The Commission lacks subject matter jurisdiction for any shipments that did not move through a U.S. port.

PRAYER

Respondents pray that their Answer be deemed good and sufficient and that all claims by Complainant against Respondents be dismissed, with prejudice, and that such other and further relief, including attorneys' fees, be awarded Respondents, and that the proceeding be terminated.

DATED: October 29, 2024

Respectfully submitted,

/s/ Rebecca A. Fenneman

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**ATTORNEYS FOR RESPONDENTS,
Orient Overseas Container Line, Limited and OOCL (Europe), Ltd.**



We take it personally

VERIFICATION

I, Gavin Murdoch declare as follows:

1. I am the Vice President, Risk and Compliance, of OOCL (USA) Inc.
2. I am duly authorized to make this verification on behalf of Orient Overseas Container Line Limited and OOCL (Europe) Limited.
3. I have read the contents of the Answer of Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited in FMC Docket No. 24-08 attached hereto, and I verify under penalty of perjury that the statements of fact contained therein are true and correct to the best of my knowledge, information, and belief.

Signed: October 28, 2024

Gavin Murdoch

Gavin Murdoch, VP Risk & Compliance

OOCL (USA) Inc.

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CERTIFICATE OF SERVICE

I certify that on this 29th day of October, 2024, a true and correct copy of the foregoing **ANSWER** was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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